

The Electrical Wires, Cables, Appliances And Protection Devices And Accessories (Quality Control) Order, 2003

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The Electrical Wires, Cables, Appliances And Protection Devices And Accessories (Quality Control) Order, 2003

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The Electrical Wires, Cables, Appliances And Protection Devices And Accessories (Quality Control) Order, 2003

Rule

THE-ELECTRICAL-WIRES-CABLES-APPLIANCES-AND-PROTECTION-DEVICES-AND-ACCESSORIES-QUALITY-CONTROL-ORDER-2003 of 2003

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The Electrical Wires, Cables, Appliances And Protection Devices And Accessories (Quality Control) Order, 2003

Published by Notification Vide S.O. 189(E), dated 17-2-2003, published in the Gazette of India, Extra, Part 2, Section 3(ii), dated 17-2-2003

333.

S.O.189 (E), dated 17th February, 2003 - In exercise of the powers conferred by section 14 of the Bureau of Indian Standards Act, 1986 (63 of 1986), the Central Government after consulting the Bureau of Indian Standards hereby makes the following Order, namely:-

1.

Short title and commencement

-(1) This Order may be called the Electrical Wires, Cables, Appliances and Protection Devices and Accessories (Quality Control) Order, 2003.

(2)

In respect of items covered under serial numbers 1 to 7 of the Schedule, this Order shall come into force with immediate effect. In respect of items covered under serial numbers 8 to 24 of the Schedule, this Order shall come into force after a period of six months from the date of publication in the Official Gazette.

2.

Definitions

.-In this Order, unless the context otherwise requires,-

(a)

"Act "means the Bureau of Indian Standards Act, 1986 (63 of 1986);

(b)

"Appropriate Authority "means any officer not below the rank of an Under Secretary to the Government of India or an officer not below the rank of a General Manager, District Industries Centre of a State Government as may be appointed by the Central Government or the State Government by a notification published in the Official Gazette to implement the provisions of this Order;

(c)

"Bureau "means the Bureau of Indian Standards;

(d)

"dealer ", in relation to Electrical Wires, Cables, Appliances, Protection Devices and Accessories, means a person who, or a firm or a Hindu undivided family which, carries on, directly or otherwise, the business of buying , selling, supplying or distributing any such electrical wires, cables, appliances, protection devices and accessories, whether in cash or for deferred payment or for commission, remuneration or other valuable consideration;

(e)

"electrical wires, cables, appliances, protection devices and accessories "mean the items specified in column (2) of the Schedule;

(f)

"manufacturer ", in relation to electrical wires, cables, appliances, protection devices and accessories, means a person who, or a firm or a Hindu undivided family which produces, makes, assembles or manufactures any such electrical wires, cables, appliances, protection devices and accessories and includes a person who, or a firm or Hindu undivided family which claims such electrical wires, cables, appliances, protection devices and accessories to be produced, made, assembled or manufactured by such person or firm or Hindu undivided family, as the case may be;

(g)

"Schedule "means the Schedule annexed to this Order;

(h)

"Specified Standard "in relation to electrical wires, cables, appliances and protection devices and accessories means the standard as specified in the corresponding entry in column (3) of the Schedule which is in force;

(i)

"State Government "includes a Union Territory Administration also;

(j)

All other words and expressions used but not defined in this Order shall have the meanings respectively assigned to them in the Act.

3.

Prohibition regarding manufacture, storage, sale and distribution, etc

-(1) No person shall by himself or through any person on his behalf manufacture or store for sale, sell or distribute any electrical wires, cables, appliances, protection devices and accessories, which do not conform to the Specified Standards and do not bear Standard Mark of the Bureau on obtaining certification marks license:

Provided that nothing in this Order shall apply in relation to export of electrical wires, cables, appliances, protection devices and accessories required for export, which conform to any specification required by the foreign buyer and such

specification shall not in any case be less than the Specified Standard.

(2)

The sub-standard or defective electrical wires, cables, appliances, protection devices and accessories or raw material or components, which do not conform to the Specified Standard shall be deformed by the manufacturer beyond use and disposed of as scrap within three months.

4.

Obligation for certification .-(1) All manufacturers of electrical wires, cables, appliances, protection devices and accessories shall make an application to the Bureau for obtaining license for use of the Standard Mark, within forty-five days of the issue of this Order, if not already obtained.

(2)

The grant of license by the Bureau for use of the Standard Mark shall be as per the provisions of the Act and rules and regulations made thereunder.

(3)

When any person by himself or through any person on his behalf proposes to manufacture electrical wires, cables, appliances, protection devices and accessories any of the items 8 to 24 specified in column (2) of the Schedule shall commence regular production only after obtaining a valid license from Bureau for the use of Standard Mark.

(4)

Consequent to the expiry of any license or cancellation thereof by the Bureau for one or more of the electrical wires, cables, appliances, protection devices and accessories mentioned in column (2) of the Schedule, the Appropriate Authority shall also be informed of the same by the Bureau.

5.

Power to call for information, etc .-(1) The Appropriate Authority may, with a view to securing compliance with this Order-

(a)

require any person engaged in the manufacture, storage for sale, sale or distribution of any electrical wires, cables, appliances, protection devices and accessories to give such information as he deems necessary relating to the manufacture, storage for sale or distribution of any electrical wires, cables, appliances, protection devices and accessories for the implementation of this Order or require any such person to furnish to him samples of any such electrical wires, cables, appliances, protection devices and accessories or any components of any such electrical wires, cables, appliances, protection devices and accessories.

(b)

inspect or cause to be inspected any books or other documents and other electrical wires, cables, appliances, protection devices and accessories or the components of any such electrical wires, cables, appliances, protection devices and accessories kept by or belonging to or in the possession or under the control of any person engaged in the manufacture, storage for sale, sale or distribution of any such electrical wires, cables, appliances, protection devices and accessories.

(c)

enter and search any premises and seize any electrical wires, cables, appliances, protection devices and accessories in respect of which it has reason to believe that a contravention of this Order has been committed or the said electrical wires, cables, appliances, protection devices and accessories are not of the Specified Standard.

(2)

The provision of the Code of Criminal Procedure, 1973 (2 of 1974) relating to search and seizures shall so far as may be, apply to searches and seizures under this clause.

6.

Testing of samples

.-Samples of any electrical wires, cables, appliances, protection devices and accessories bearing the Standard Mark and drawn by the Appropriate Authority, for ascertaining whether they are of the Specified Standard, shall be tested in the laboratory approved by the Bureau and in the manner as may be determined by the Bureau.

7.

Power to issue direction to manufacturers and dealers or sellers

.-The Appropriate Authority may issue such directions to manufacturers and dealers or sellers, consistent with the provisions of the Act or this Order, as may be necessary for carrying out the purposes of this order.

8.

Compliance of directions

.-Every person engaged in the manufacture, storage for sale, sale or distribution of any electrical wire, cables, appliances, protection devices and accessories to whom any direction is issued under this Order, shall comply with such direction.

9.

Obligation to furnish information

.-No manufacturer or dealer shall with intent to evade the provisions of this Order, refuse to give any information lawfully demanded from him under clause 5 or conceal, destroy, mutilate or deface any books or documents or any electrical wires, cables, appliances, protection devices and accessories kept by, or in the possession or control of such person.

Schedule

(See clause 2 (e))

S.No.

Item

Standard

1

Safety of household and similar electrical appliances -Electrical immersion water heaters.

IS: 302-2-201 (1992)

2

Safety of household and similar electrical appliances - Electric Iron.

IS: 302-2-3 (1992)

3

Safety of household and similar electrical appliances - Electric stoves

IS: 302-2-202 (1992)

4

Safety of household and similar electrical appliances - Electric radiators.

IS: 302-2-30 (1992)

5

Switches for domestic and similar purposes.

IS: 3854: 1988

6

2 Amp switches for domestic and similar purposes.

IS: 4949: 1968

7

Tungsten Filament General Services Lamps

IS 418

8

Self ballasted lamps for general lighting services: Part 1 safety requirements.

IS 15111 (Pt.1)

9

Self ballasted lamps for general lighting services: Part 2 Performance requirements.

IS 15111 (Pt.2)

10

Electrical Accessories -

Circuit Breakers for over current protection for household and similar installations

IS 8828

11

Residual current operated circuit Breakers for household and similar uses (Pt.1) : Circuit breakers without Integral overcurrent protection (RCCBs)

IS 12640 (Pt.1)

12

Residual current operated circuit breakers for household and similar uses - (Pt.2) : Circuit breakers with integral

overcurrent protection (RCVOs)

IS 12640 (Pt.2)

13

Low voltage fuses for voltages not exceeding 1000 V AC or 1500 V DC (Pt. 2) fuses for use by authorised persons

IS 13703 (Pt.2)

14

High voltage fuses (Pt.1) : current limiting fuses

IS 9385 (Pt.1)

15

High voltage fuses (Pt.2): expulsion similar fuses

IS 9385 (Pt.2)

16

Low voltage switchgear & control gear- (Pt.2) circuit breakers

IS 13947 (Pt.2)

17

Low voltage switchgear & control gear - (Pt.3) switches, disconnectors, switch disconnectors and fuse combination units.

IS 13947 (Pt.3)

18

Low voltage switchgear & control gear- (Pt.4) contactors and motor starters

IS 13947 (Pt.4)

19

Low voltage switchgear & control gear- (Pt.5) control circuit devices & switching elements

IS 13947 (Pt.5)

20

PVC insulated cables for working Voltages upto and including 1100 V

IS 694

21

Elastomer insulated cables

(Pt.1) : for working voltages upto and including 1100 V

IS 9968 (Pt.1)

22

AC Watt-hour meters, class 0.5,

1 & 2 (KWH)

IS 13010

23

AC static watt-hour meters, class 1 &2 (KWH)

IS 13779

24

AC static transformer operated watt-hour and VAR - hour meters, class 0.2S & 0.5S

IS 14697

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